

Plaintiff to file and serve the referenced narrowed lists within 10 days of this order.

Plaintiff's discovery as to Defendants Rocket Close, LLC and Rocket Companies, Inc. shall proceed within no more than 50 RFAs and 35 SROGs per Defendant, consistent with Plaintiff's narrowed priority lists referenced in her opposition.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	PLAINTIFF'S MOTION FOR RECONSIDERATION OF PRELIMINARY INJUNCTION PURSUANT TO CCP § 1008(B)

Tentative Ruling: No tentative ruling. A hearing shall be conducted.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2508945	ZADEII VS BIRDSALL	DEMURRER ON 1ST AMENDED COMPLAINT FOR OTHER COMPLAINT) OF GHOLAM ZADEII, M.D. BY GREGORY PHILLIP BIRDSALL, KANDICE KAY BIRDSALL

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where the pleading is uncertain, ambiguous, or unintelligible. (C.C.P. § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (*People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where a complaint is sufficient to state a cause of action and to apprise defendant of issues he or she is to meet, it is not properly subject to a special demurrer for uncertainty. (*Ibid.*)

Demurrer as to Kandice Birdsall, All Causes of Action:

Defendants demur to each cause of action in the FAC for failure to state sufficient facts to constitute causes of action against Kandice, and specially demurs to the FAC because it is uncertain as to the allegations set forth against Kandice. Specifically, Defendants contend that Plaintiff's reliance on conclusory allegations of "agency" are insufficient as a matter of law.

However, "[a]n allegation of agency is an allegation of ultimate fact that must be accepted as true for purposes of ruling on a demurrer." (*City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 212.) Further, in general, the allegations in a pleading are liberally construed with a view to substantial justice between the parties. (C.C.P. § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1238.) Where a complaint is sufficient to state a cause of action and to apprise defendant of issues he or she is to meet, it is not properly subject to a special demurrer for uncertainty. (*Taliaferro, supra*, 149 Cal.App.2d at 825.)

Here, the FAC alleges that Kandice is Gregory's spouse, and on information and belief, "participated in planning the burglary and directed or aided in the concealment and disposition of Plaintiff's stolen property." (FAC, ¶ 3.) The FAC further alleges that each defendant was the agent of the others and liable for the acts and omissions of their agent and co-conspirator. (FAC, ¶ 5-6.) Accordingly, the FAC clearly states that Plaintiff is imputing each defendant's actions or omissions upon the other. Given the policy of liberal construction with inferences made in favor of Plaintiff, the FAC has alleged sufficient facts to apprise Kandice that she is to meet each issue alleged against all Defendants. Any ambiguities can be later "clarified under modern discovery procedures." (*Khoury, supra*, 14 Cal.App.4th at 616.)

3rd Cause of Action Receipt of Stolen Property:

"Penal Code section 496, subdivision (a) (section 496(a)) makes receiving or buying property 'that has been obtained in any manner constituting theft' a criminal offense punishable by imprisonment. Section 496, subdivision (c) (section 496(c)) provides that any person 'who has been injured by a violation of [section 496(a)] ... may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney's fees.'" (*Bell v. Feibush* (2013) 212 Cal.App.4th 1041, 1043 [italics omitted], citing Pen. Code § 496.)

Defendants argue that Plaintiff fails to allege any facts to state that Defendants received any of Plaintiff's stolen property to state a cause of action for receipt of stolen property. Plaintiff contends that the FAC sufficiently alleges that Plaintiff's passport was stolen, and 10 weeks later, personal information contained in the passport was used to seek credit in Plaintiff's name. (FAC, ¶ 8, 29.) Plaintiff further argues that the loan application was submitted from Seattle, where Defendants have family, friends, and substantial connections because they previously lived there. (FAC, ¶ 30-31.) The FAC further states that "[t]he identity theft and fraudulent loan application further *suggest* that Birdsall, or persons acting in concert with him, had access to and possession of items stolen from Plaintiff's safe after the burglary—specifically, Plaintiff's passport and personal documents—and used those stolen items for financial gain." (FAC, ¶ 32 [emphasis added].) However, these allegations are not based on fact, but rather are mere contentions, deductions, or conclusions of fact, none of which are admitted upon demurrer. (*Daar, supra*, 67 Cal.2d at 713.)

4th Cause of Action Civil Conspiracy:

As Plaintiff acknowledges, “[c]onspiracy is not a cause of action, but a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration.” (*Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 510–511.) Accordingly, there is no independent cause of action for conspiracy.

5th Cause of Action Fraud (Identity Theft):

The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 157-158.) Every element of a cause of action for fraud must be pled factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) “This particularity requirement necessitates pleading *facts* which ‘show how, when, where, to whom, and by what means the representations were tendered.’ [Citation.]” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

The FAC alleges that Defendants used Plaintiff’s stolen personal information, including information from his passport, to submit a fraudulent loan application under Plaintiff’s name. (FAC, ¶ 58.) The FAC further alleges that the fraudulent loan application contained knowing misrepresentations of material fact, including the identity of the applicant, which were made with the intent to defraud PenFed Credit Union to obtain money. (FAC, ¶ 59.)

However, as Defendants point out, the FAC fails to allege any misrepresentation, reliance, or damage directed at Plaintiff. Further, as discussed above, the FAC’s allegations that Defendants were responsible for filing the loan application are improperly based on deductions, contentions, or conclusions rather than facts, and therefore not admitted upon demurrer. (*Daar, supra*, 67 Cal.2d at 713.)

In opposition, Plaintiff argues that the fifth cause of action is not a “garden-variety fraud” claim, nor is it a claim under the Identity Theft Act. (Opp., p. 10.) However, Plaintiff fails to establish how sufficient these allegations are to state any independent claim at all. Specifically, to the extent that Plaintiff characterizes the cause of action as “a claim for the wrongful taking and misuse of Plaintiff’s property whether the count is labeled fraud, conversion, or receipt of stolen property” (*id.*), Plaintiff’s claim is duplicative of the cause of action for conversion.

Courts have long held that a duplicative cause of action is a basis for sustaining a demurrer. (See *Palm Springs Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal. App. 4th 268, 290 [duplicative cause of action for breach of fiduciary duty subject to dismissal by way of demurrer]; *Ponce-Bran v. Trustees of Cal. State University* (1996) 48 Cal. App. 4th 1656, 1658 [court struck the fourth cause of action as duplicative]; *Rodrigues v. Campbell Industries* (1978) 87 Cal. App. 3d 494, 501 [finding demurrer was properly sustained without leave to amend as to cause of action that contained allegations of other causes and “thus add[ed] nothing to the complaint by way of fact or theory of recovery”]; *Award Metals, Inc. v. Superior Court* (1991) 228 Cal. App. 3d 1128, 1135 [demurrer properly sustained to duplicative negligence cause of action].) By Plaintiff’s own admission, the allegations set forth in the fifth cause of action also fall under a cause of action for conversion. Because Defendants do not demur to Plaintiff’s cause of action for conversion, it remains viable. Accordingly, the fifth cause of action is duplicative of Plaintiff’s existing cause of action for conversion.

7th Cause of Action Unfair Business Practices:

Business and Professions Code § 17200 states that “unfair competition shall mean and include any unlawful, unfair or fraudulent business act or practice.”

The Unfair Competition Law’s (“UCL”) scope is broad and coverage is sweeping. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.) “[B]ecause the statute is framed in the disjunctive, a business practice need meet only one of the three criteria to be considered unfair competition.” (*Wiseman Park, LLC v. Southern Glazer’s Wine & Spirits, LLC* (2017) 16 Cal.App.5th 110, 129.) “An unfair business practice occurs when the practice offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.” (*Podolsky v. First Healthcare Corp.* (1996) 50 Cal.App.4th, 632, 647.) The unfair standard is also intentionally broad, “thus allowing courts maximum discretion to prohibit new schemes to defraud.” (*Searle v. Wyndham Intl.* (2002) 102 Cal.App.4th 1327, 1334.) UCL claims must be pled with reasonable particularity. (*Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261.)

Defendants argue that Plaintiff has failed to state a cause of action under the UCL because a residential burglary does not qualify as a “business practice.” Plaintiff contends that the FAC alleges a planned, profit-seeking enterprise, which could be inferred to be called a business practice, and that “fencing stolen goods and selling stolen identities is commerce.” (Opp., p. 12.) However, the FAC contains no allegations of fencing or selling stolen goods or identities, or any allegations to infer that Defendants were engaged in a “profit-seeking enterprise.”

Special Demurrer as to Uncertainty for all Causes of Action against Kandice Birdsall OVERRULED.

General Demurrer as to the 3rd, 5th and 7th Causes of Action against Gregory and Kandice Birdsall SUSTAINED with leave to amend. Plaintiff to file amended complaint within 20 days.

General Demurrer as to the 4th Cause of Action against Gregory and Kandice Birdsall SUSTAINED without leave to amend.

Case Management Conference continued to 9.16.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2604642	MCDONALD VS PAUL DAVIS RESTORATION OF GREATER PALM	PETITION FOR RELEASE OF PROPERTY FROM MECHANICS LIEN

Tentative Ruling:

Petition for Release of Property from Mechanics Lien GRANTED.

No attorney’s fees awarded.